

The replication will then in most cases be necessarily filed. 1850.

No subpoena to rejoin is hereafter to be issued, and only one replication is to be filed in the cause, unless the Court otherwise orders; and the replication is to be in the form set forth in Schedule E. to these Orders appended, or as near thereto as circumstances admit and require; and upon the filing of the replication the cause is to be deemed to be completely at issue.

XLV.  
Cause put at  
issue by  
replication.

The following is the form :—

Between A. B. Plaintiff,

and

C. D., E. F., G. H., &c. Defendants.

The Plaintiff in this cause joins issue with the Defendant C. D. (*all the Defendants who have answered, or against whom a traversing note has been filed*), and will hear the cause upon bill and answer against the Defendant E. F. (*all the Defendants against whom the cause is to be heard on bill and answer*) and on the order to take the bill as confessed against the defendant G. H. (*as the case may be*).

Form of  
replication.

The subpoena to rejoin had been already abolished by the 157th Order of 1845, which gave the following very short form of replication. "The Plaintiff replies to the Defendant's answer." The above form under the New Order, it will be seen, is to meet any case of several Defendants. If all the Defendants have answered, the first clause will of course be sufficient, and so on, according to the circumstances. The 157th Order of 1850 is repealed, and the replication will therefore always commence according to the above form under the Order of 1850.

Subpoena to  
rejoin abolish-  
ed in 1845.

There should be only one replication to all the answers, and, a replication to one answer having been filed, and another answer afterwards coming in, an application to the Court will be required to withdraw the first one. (*Stinton vs. Taylor*, 4 Hare, 608; 10 Jurist, 386).

The Plaintiff (not obtaining an Order for leave to amend his bill) must either file his replication, or set down the cause to be heard on bill and answer, within one month after the filing of the last answer. The plaintiff having obtained an order for leave to amend after answer, must

1850.  
XLVI.  
Replication  
one month after  
last answer.